

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 33-006
Amendments to Title 6, Chapter 1 of the Chickasaw Nation Code
(Domestic Relations and Families)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Nation Child Support Services enforces orders from the State of Oklahoma as well as the Chickasaw Nation, and the State of Oklahoma recently amended their laws pertaining to interest rates on court-ordered child support and judgments for support as well as calculation of child support, and

WHEREAS, these amendments update specific provisions of Title 6 of the Chickasaw Code dealing with interest rates on court-ordered child support and judgments for support as well as calculation of child support in order to provide a more uniform method of calculating interest or child support and take into account children not previously accounted for in the child support calculations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts the following amendments to Title 6, Chapter 1, Sections 6-101.55 and 6-102.6 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through). These amendments to the Chickasaw Nation Code shall become effective November 1, 2016:

“SECTION 6-101.55

**INTEREST ON DELINQUENT CHILD SUPPORT
AND SUIT-MONEYS PAYMENT ~~JUDGMENTS FOR~~
SUPPORT.**

Court-ordered ~~past due~~ child support payments and court-ordered payments of suit-moneys, ~~judgments for support shall~~ draw interest at the rate of ~~ten percent (10%)~~ **two percent (2%)** per year from the date they become delinquent, and the interest shall be collected in the same manner as the payments upon which the interest accrues. **Past due child support payments accruing after the establishment of the current support order, and judgments for support shall draw interest from the date they become delinquent.**

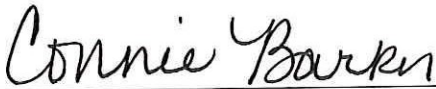
SECTION 6-102.6 CHILD SUPPORT GUIDELINES.

C. The Court shall not take into account any stepchildren of such parent in making the a determination of child support, but in making such determination, the Court may take into account the reasonable support obligations of either parent as to only natural, legal, or legally adopted minor children in the custody of the parent for whom the parent is actually providing support.

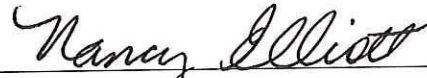
E. The child support guidelines are as follows:

6. The amount calculated under section 6-102.6(C), and the amount of any preexisting court order for current child support for children not before the Court or for support alimony arising in a prior case shall be deducted from Gross Income to the extent payment is actually made under the order."

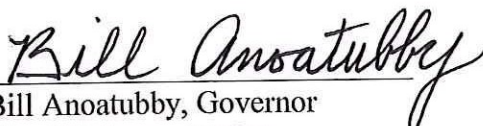
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 16, 2016 by a vote of 12 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 19 2016

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 33-006
Amendments to Title 6, Chapter 1 of the Chickasaw Nation Code
(Domestic Relations and Families)

Explanation: This Resolution amends specific provisions of the Domestic Relations and Families Code dealing with interest on past due court ordered child support payments and judgments for support and the calculation of child support in order to provide a more uniform method of calculating interest on child support and take into account children not previously accounted for in the child support calculations. These amendments to the Chickasaw Nation Code shall be effective November 1, 2016.

Presented by: Court Development Committee

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“SECTION 6-101.55 **INTEREST ON DELINQUENT CHILD SUPPORT AND**
JUDGMENTS FOR SUPPORT.

Court-ordered past due child support payments and, judgments for support shall draw interest at the rate of two percent (2%) per year. Past due child support payments accruing after the establishment of the current support order, and judgments for support shall draw interest from the date they become delinquent.

SECTION 6-102.6 **CHILD SUPPORT GUIDELINES.**

C. The Court shall not take into account any stepchildren of such parent in making a determination of child support, but in making such determination, the Court may take into account the reasonable support obligations of either parent as to only natural, legal, or legally adopted minor children for whom the parent is actually providing support.

E. The child support guidelines are as follows:

6. The amount calculated under section 6-102.6(C), and the amount of any preexisting court order for current child support for children not before the Court or for support alimony arising in a prior case shall be deducted from Gross Income to the extent payment is actually made under the order.”